

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alfredo Gonzalez	Team: Squad #07	CCRB Case #: 201503337	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 04/21/2015 6:58 PM	Location of Incident: McClellan Street and Sherman Avenue	18 Mo. SOL 10/21/2016	Precinct: 44
Date/Time CV Reported Wed, 04/22/2015 12:40 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/28/2015 3:07 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Owais Khanzada	04069	945879	044 PCT
2. POM Anthony Cassase	28721	952553	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Espenberg	03086	948938	044 PCT
2. POM Adam Landau	18079	932879	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Anthony Cassase	Force: PO Anthony Cassase used physical force against § 87(2)(b)	A . Exonerated
B . SGT Owais Khanzada	Force: Sgt. Owais Khanzada used physical force against § 87(2)(b)	B . Exonerated
C . SGT Owais Khanzada	Force: Sgt. Owais Khanzada used a taser against § 87(2)(b)	C . Exonerated

Case Summary

On April 21, 2015, at approximately 6:58 p.m., in the vicinity of McClellan Street and Sherman Avenue in the Bronx, officers arrested § 87(2)(b) for § 87(2)(b). § 87(2)(b) was placed in handcuffs and escorted to an RMP without incident. Once inside the RMP, § 87(2)(b) alleged that he was in pain because of the handcuffs, so he maneuvered his hands underneath his legs so that his hands were in front of him. Upon seeing this, PO Anthony Cassase and his partner, PO Michael Espenberg, commanded § 87(2)(b) to exit the RMP. § 87(2)(b) alleged that as he attempted to exit the vehicle, PO Cassase and Sgt. Owais Khanzada pulled him out of the car and threw him onto the ground (**Allegation A and B**). Immediately after being thrown to the ground, Sgt. Khanzada allegedly tasered § 87(2)(b) (**Allegation C**). Afterwards, § 87(2)(b) was transported to § 87(2)(b) and treated for the removal of the taser's prongs.

Mediation, Civil, and Criminal History

This case was ineligible for mediation due to § 87(2)(b)'s arrest. As of June 18, 2015, § 87(2)(b) has not filed a notice of claim against the City of New York. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB History

- This is § 87(2)(b)'s first CCRB complaint (see Board Review: C/V CCRB History)
- PO Cassase has been a member of the NYPD for two years. This is his first CCRB complaint (see Board Review: Officer CCRB History).
- Sgt. Khanzada has been a member of the NYPD for seven years. Sgt. Khanzada has had one previous complaint in which a threat of arrest allegation was exonerated and a discourtesy allegation was unsubstantiated. Sgt. Khanzada also has two additional open complaints, CCRB case number 201503702 and 201503860, in which there are allegations of physical force, the use of a taser, and a frisk (see Board Review: Officer CCRB History).
- All three of Sgt. Khanzada's current open CCRB complaints allege the use of a taser, and all three incidents occurred within the timespan of one month.

Potential Issues

- § 87(2)(b) was arrested alongside § 87(2)(b) and they were placed inside the same RMP at the time in which the allegations occurred. Attempts to contact § 87(2)(b) were unsuccessful. On May 18, 2015, and June 1, 2015, two letters were sent to the address listed on her arrest report and to an address found through Lexis Nexis. To date, the U.S. Postal Service has not returned the letters. The Lexis Nexis search did not yield a viable telephone number.
- The NYPD Complaint Report listed § 87(2)(b) as the victim of the incident. On June 1, 2015, § 87(2)(b) was contacted and he stated that he did not wish to participate in the CCRB's investigation.
- Video footage of the incident that prompted the 911 call was attained; however, the video does not capture § 87(2)(b)'s interaction with the officers § 87(2)(g).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) alleged that an officer that was originally inside the RMP forcibly removed him from the vehicle. PO Cassase, who was in the driver's seat, admitted to removing § 87(2)(b) from the vehicle with the assistance of a second officer. Sgt. Khanzada also admitted to removing § 87(2)(b) from the vehicle with the help of PO Espenberg; however, PO Espenberg denied assisting any of the officers and stated that he was on the passenger's side of the vehicle when § 87(2)(b) was removed. § 87(2)(g)

Allegation A – Force: PO Anthony Cassase used physical force against § 87(2)(b)

Allegation B – Force: Sgt. Owais Khanzada used physical force against § 87(2)(b)

It is undisputed that PO Cassase and Sgt. Khanzada used physical force against § 87(2)(b). § 87(2)(b) acknowledged maneuvering his handcuffs from the back of his body to the front of his body while he was seated in the RMP. § 87(2)(b) alleged that after PO Cassase and PO Espenberg commanded him to exit the vehicle, he was pulled out of the car and thrown to the ground by an officer (see § 87(2)(b)'s statement).

PO Cassase acknowledged removing § 87(2)(b) from the RMP with the assistance of another officer. PO Cassase stated that he did so because § 87(2)(b) had maneuvered his hands to his front and was behaving violently inside the RMP, yelling, and punching at the windows. PO Cassase stated that he commanded § 87(2)(b) to remain calm, but § 87(2)(b) did not comply and continued to scream and resist. At one point, § 87(2)(b) attempted to climb onto the driver's seat. At that point, PO Cassase opened the back passenger's door and attempted to grab § 87(2)(b) but § 87(2)(b) resisted by punching and kicking at him. Eventually, PO Cassase and another officer grabbed § 87(2)(b) by the legs and dragged him out of the vehicle, which caused § 87(2)(b) to fall onto the ground (see PO Cassase's statement). Sgt. Khanzada recalled observing the commotion § 87(2)(b) was creating inside the vehicle and seeing that § 87(2)(b) had maneuvered his hands to his front. Sgt. Khanzada also recalled seeing § 87(2)(b) attempt to move to the driver's seat of the RMP. Sgt. Khanzada stated that he then assisted PO Espenberg in removing § 87(2)(b) from the vehicle by grabbing onto § 87(2)(b)'s arms and pulling him out. § 87(2)(b) immediately fell to the ground and landed on his back (see Sgt. Khanzada's statement). PO Espenberg stated that he did not assist in removing § 87(2)(b) from the vehicle, but he corroborated PO Cassase's statement in regards to § 87(2)(b)'s behavior and the manner in which he was removed from the vehicle (see PO Espenberg's statement).

Only the amount of force necessary to overcome resistance will be used to effect an arrest. NYPD Patrol Guide, Section 203-11 (see Board Review: Patrol Guide).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C – Force: Sgt. Owais Khanzada used a taser against § 87(2)(b)

It is undisputed that Sgt. Khanzada used a taser against § 87(2)(b) § 87(2)(g)

§ 87(2)(b) alleged that immediately after being removed from the vehicle and being thrown to the ground, Sgt. Khanzada used a taser against him for two cycles. § 87(2)(b) denied that Sgt. Khanzada issued any commands before deploying the taser and he stated that he was not resisting (see § 87(2)(b)'s statement).

Sgt. Khanzada stated that § 87(2)(b) continued to actively resist while on the ground by kicking and punching at the officers. Sgt. Khanzada commanded him several times to stop resisting and to allow the officers to re-handcuff him, but § 87(2)(b) did not comply. Sgt. Khanzada then warned § 87(2)(b) that he would discharge his taser if he did not comply, but § 87(2)(b) continued to actively resist. Sgt. Khanzada then discharged the taser for two or three cycles. Soon after being tased, § 87(2)(b) told Sgt. Khanzada to stop and began to comply. Sgt. Khanzada stated that he used the taser for his own safety and the safety of the officers (see Sgt. Khanzada's statement). Both PO Cassase and PO Espenberg corroborated Sgt. Khanzada's account of incident (see PO Cassase's and PO Espenberg's statements).

A conductive energy device should be deployed against persons who are actively physically resisting, exhibiting active physical aggression, or to prevent individuals from physically injuring themselves or another person. The totality of the circumstances should be taken into consideration when deploying a conductive energy device: officer/subject disparity in terms of size, age, and strength, the officer's perception of the subject's willingness to resist, the officer's perception of the immediate threat to the subject, members of service, and bystanders, and the subject's violence history, if known. NYPD Patrol Guide, Section 212-117 (see Board Review: Patrol Guide).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **exonerated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date